Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 462

RESOLUTION CONGRATULATING AND COMMENDING THE COMMISSION ON ELECTIONS, SECURITY SECTOR, MINISTRY OF BASIC, HIGHER AND TECHNICAL EDUCATION, AND PROVINCIAL GOVERNMENT OF COTABATO FOR THE ORDERLY, PEACEFUL, AND MEANINGFUL CONDUCT OF PLEBISCITE IN THE SIXTY-THREE BARANGAYS IN SPECIAL GEOGRAPHIC AREA TO RATIFY THE CREATION OF EIGHT NEW MUNICIPALITIES IN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

WHEREAS, Section 10 of Republic Act No. 7160, otherwise known as *"Local Government Code of 1991"*, and Section 10 of Bangsamoro Autonomy Act No. 49 also known as *"Bangsamoro Local Governance Code of 2023"*, provide for similar provision which states that:

> *"No creation, xxx of local government units shall take effect unless approved by a majority of the votes cast in a plebiscite called for the purpose in the political unit or units directly affected;"*

WHEREAS, Section 10, Article VI of Republic Act No. 11054, otherwise known as *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, provides that the parliament may create, xxx municipalities xxx in accordance with a law enacted by the Parliament. xxx Provided, that it shall be approved by a majority of the votes cast in a plebiscite in the political units directly affected;

WHEREAS, on April 13, 2024, the Commission on Elections (COMELEC) successfully administered the plebiscite for the creation of eight (8) new municipalities in the Special Geographic Area (SGA) of the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM);

WHEREAS, SGA is the territory of the BARMM distributed in eight (8) municipalities in Cotabato Province, created through the plebiscite in 2019, carving out sixty-three (63) barangays from the municipalities of Aleosan, Carmen, Kabacan, Midsayap, Pigcawayan, and Pikit;

WHEREAS, a plebiscite is a substantial and indispensable requirement of the law to ratify the creation of new municipalities in the BARMM;

WHEREAS, the COMELEC said that the result of the plebiscite showed seventy-two thousand six hundred fifty-eight (72,658) out of the total eighty-nine thousand nine hundred fifty-four (89,954) eligible voters, or 81.10 percent, cast their votes during the plebiscite day with the scheduled voting hours from 7:00 am to 3:00 pm;

WHEREAS, the COMELEC further specified that seventy-two thousand three hundred fifty-eight (72,358) residents voted *"yes"* in favor of the ratification of the creation of eight (8) municipalities while only two hundred seventy-three (273) voted *"no;"*

WHEREAS, the newly created municipalities consist of Pahamuddin having twelve (12) barangays, Tugunan with nine (9) barangays, and seven (7) barangays each for Kadayangan, Nabalawag, Old Kaabakan, Kapalawan, Malidegao, and Ligawasan;

WHEREAS, COMELEC's spokesperson Atty. John Rex C. Laudingco commended the peaceful and orderly conduct of the plebiscites, he said that *"the peaceful and orderly conduct of the*

plebiscites would not have been successful without the invaluable partner agencies, namely the Philippine National Police and Armed Forces of the Philippines, with the full support of the Local Government Units of the concerned municipalities;"

WHEREAS, Office of the Presidential Adviser on Peace, Reconciliation, and Unity Secretary Carlito G. Galvez, Jr., said *"We are delighted to see such a high level of participation from our constituents in the SGA. This is a testament of the people's aspiration for their barangays to be part of BARMM. This plebiscite is also a very good preparation for the first regular BARMM regional elections to be held in 2025;"*

WHEREAS, this Resolution intends to recognize and applaud the orderly, peaceful, and meaningful conduct of the plebiscites in the SGA of BARMM, through the joint efforts and hard work of the COMELEC, Security Sector, Ministry of Basic, Higher, and Technical Education (MBHTE), and Provincial Government of Cotabato:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To congratulate and commend the Commission on Elections, Security Sector, Ministry of Basic, Higher and Technical Education, and Provincial Government of Cotabato for the orderly, peaceful, and meaningful conduct of plebiscite in the sixty-three barangays in Special Geographic Area to ratify the creation of eight new municipalities in the Bangsamoro Autonomous Region in Muslim Mindanao.

RESOLVED, FURTHER, To furnish this Resolution to the COMELEC, Security Sector, MBHTE, and Provincial Government of Cotabato, for information.

ADOPTED, *Dhu Al-Hijjah* 13, 1445/June 19, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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